

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Monique West	Team: Squad #02	CCRB Case #: 201406643	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/02/2014 8:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/2/2016	Precinct: 73		
Date/Time CV Reported Thu, 07/03/2014 9:32 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/03/2014 9:32 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Polanco	21398	947361	NARCBBN
2. DT3 Jennyann Nelson	04900	928857	NARCBBN
3. DT3 Susie Peralta	03331	922814	NARCBBN
4. DT3 Courtney Thorpe	01210	937627	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Richard Polanco	Abuse: PO Richard Polanco entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 Susie Peralta	Abuse: Det. Susie Peralta refused to provide her name and/or shield number to § 87(2)(b)	B . Unsubstantiated
C . DT3 Jennyann Nelson	Abuse: Det. Jennyann Nelson refused to provide her name and/or shield number to § 87(2)(b)	C . Unsubstantiated
D . DT3 Courtney Thorpe	Abuse: Det. Courtney Thorpe damaged § 87(2)(b)'s property.	D . Unsubstantiated

Case Summary

On July 2, 2014, at approximately 8:50 p.m., Officer Richard Polanco of Narcotics Borough Brooklyn North and his field team entered and searched § 87(2)(b)'s home located at § 87(2)(b) in Brooklyn during the execution of a search warrant (**allegation A**). During her interaction with the officers, Det. Susie Peralta and Det. Jennyann Nelson of NBBN allegedly failed to provide their names to § 87(2)(b) (**allegations B and C**). Det. Courtney Thorpe allegedly damaged § 87(2)(b)'s couch (**allegation D**). § 87(2)(b) was not arrested or summonsed as a result of this incident (complaint encl. B1, CCRB testimony encl. B3-5).

Mediation, Civil and Criminal Histories

This case was returned from ADR after the subject officer rejected mediation. The notice of claim was requested and will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A5).
- Officer Polanco has been a member of the NYPD for six years, has had four previous CCRB allegations involving two cases with no substantiated allegations. § 87(2)(g)
- Det. Nelson has been a member of the NYPD for 13 years, has had 12 previous CCRB allegations involving seven cases with no substantiated allegations. § 87(2)(g)
- Det. Peralta has been a member of the NYPD for 16 years, has had 12 previous CCRB allegations involving ten cases with no substantiated allegations. § 87(2)(g)
- Det. Thorpe has been a member of the NYPD for ten years, has had three previous CCRB allegations involving three cases with no substantiated allegations. § 87(2)(g)

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Explanation of Subject Officer Identification

Officer Polanco obtained the search warrant (encl. D4); § 87(2)(g) § 87(2)(b) alleged that she asked two female officers for their names. She described one officer as a 5'5-5'7" tall white female, 35-45 years old with dusty blond hair, an accent, glasses and a small build. Det. Nelson is a 36 year old white female who stands 5'7" tall and weighs 150 pounds. She has a thin build, brown hair and an accent. § 87(2)(b) described the other female officer as 5'5-5'7" tall Hispanic female, 35-45 years old with dark wavy hair and a light brown skin complexion. Det. Peralta is a § 87(2)(b) old Hispanic female who stands 5'4" tall with black hair and a tan skin complexion. According to the Search Warrant Plan Pre-Execution (encl.

D5), Det. Peralta and Det. Nelson were the only two female officers present during the execution of the search warrant. § 87(2)(g)

Recommendations

Allegation A- Abuse of Authority: PO Richard Polanco entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(g) . It is therefore recommended that allegation A be closed as **exonerated**.

Allegation B- Abuse of Authority: Det. Susie Peralta refused to provide her name and/or shield number to § 87(2)(b)

Allegation C- Abuse of Authority: Det. Jennyann Nelson refused to provide her name and/or shield number to § 87(2)(b)

§ 87(2)(b) alleged that she asked Det. Peralta and Det. Nelson over ten times for their names throughout the incident (encl. B3).

Det. Nelson admitted that § 87(2)(b) asked her for her name but stated that she provided it. She did not know whether § 87(2)(b) asked Det. Nelson for her name. Det. Peralta did not recall whether § 87(2)(b) asked her or Det. Nelson for their names. PO Polanco and Det. Thorpe did not hear § 87(2)(b) ask either officer for their names (see encl. C5, C9, C13 and C17).

§ 87(2)(g) . It is therefore recommended that allegations B and C be closed as **unsubstantiated**.

Allegation D- Abuse of Authority: Det. Courtney Thorpe damaged § 87(2)(b)'s property.

It is undisputed that Det. Thorpe released the lever on § 87(2)(b)'s couch causing it to recline. § 87(2)(b) alleged that she later discovered after the officers left that her couch no longer properly reclines (encl. B5).

Det. Thorpe stated that he reclined her couch to make sure no one was behind or underneath it but he did not break or damage it. Det. Nelson stated that Det. Thorpe searched § 87(2)(b)'s couch under her direction but no damage was done to the couch. Neither Officer Polanco nor Det. Peralta saw Det. Thorpe touch § 87(2)(b)'s couch nor did they see any damage to her couch (see encl. C5, C9, C13 and C17).

§ 87(2)(g) . It is therefore recommended that allegation D be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date